

BANK RECEIVERSHIP MAY BE VACATED

State Willing if Plan Can Be Suggested to Protect Stockholders and Depositors

SAYS COURT HAD JURISDICTION

**Opinion Written by Barclay Used
by Attorney General in Brief
—May Render Decision
To-Morrow**

If a safe and reasonable plan can be suggested for the protection of depositors and stockholders, the membership of the People's United State Bank may be vacated. The willingness of the State officials to this was expressed in the closing sentence of the brief filed with Judge McShinney yesterday by Attorney General Hadley.

Hadley, in his brief opposed, however, the arguments of Lewis's attorneys. He contends that the court acquired jurisdiction to entertain the application by the location of the bank in St. Louis county, and that notice and an order to show cause were not necessary under section 1266 of the Revised Statutes of 1893.

The lawmakers evidently know that circumstances would arise, he says, rendering them an *in rem* action. All benefits

The attorney general cites the case of *The St. Louis Railroad Company vs. Wear*, 125 Mo. 503, in which Judge Barclay, Lewis' counsel, wherein, he claims, the court re-

The bond, he asserts, was properly drawn. Section 236 of the Revised Statutes requires it to be given in favor of the State.

The brief also recited the various allegations in the petition for a receiver.

was impossible, he said, to conceive a case where the existence of a bank was threatened more. After the first complaint was made the indebtedness was increased at the rate of \$10,000 a day. If the Lewis loans were so desirable, he thinks there would have been no trouble in obtaining

Judge McShinney is expected to pass upon the motion tomorrow.

McShinney's decision is expected to be in favor of the bank in its demand for the return of the deposit. In discussing his interview in The Republic of yesterday, anent the appointment of a receiver, said:

"I was surprised to be asked to explain the facts might view with suspicion a receivership brought about under the rather peculiar circumstances which had been made public."

"I did refer to the fact that the depositors seemed not to have been in possession of the receiver himself's appointment. I also referred to the fact that the Secretary of State seemed to have taken proper precaution with respect to the deposit, and that it was to be expected to be put upon the board of the bank men."

then add that some facts must have been stated to the court which have not yet been made public, which justified the summary intervention without notice."

FUNSTON'S FATHER PLACED ON TRIAL

Charged at Iola, Kas., With Dis-
turbng the Peace and Carry-
ing Concealed Weapons.

ner Congressman from this district and father of General Frederick Funston, was placed on trial in the City Court here to-day charged with carrying concealed weapons and with disturbing the peace.

Following the dynamite explosion in Iowa

A crowd was drawn to the scene, and then an officer requested Funston to assist in his task, the two clinched and Funston, it is alleged, attempted to draw his revolver. The courtroom was crowded today.

A verdict is not expected till Monday next.

POLICE THINK CONTRACTOR MEANT TO END HIS LIFE.

atter were found on his person when arrested. August W. Dauen, 44 years old, a contractor, residing at No. 3225 Big Bend road, Maplewood, Mo., denies that he had any intention of committing suicide. The police, however, from the fact that

When asked how he happened to be in possession of the weapons, Davis replied:

He said that he wrote the will to be prepared for any sudden accident and possible death. The letter, which was addressed to his son, Charles L. Daunce, told where his son should go in the event of a fatal accident.

ysterious woman who tried to get into the guardhouse at Jefferson Barracks. He said that he had written this letter for the same purpose as the will. It is believed that the woman referred to in the letter is Duane's wife, from whom he has

WOMAN CRUSOE DIES INSANE ON ISLAND.

**Marooned Seventeen Years, Her End
Is Unlike That of the Hero of
Defoe's Novel.**

San Francisco, July 15.—Beginning due west of Point Conception on the California Coast and continuing at irregular intervals as far south as the Bay of Todos Santos in Lower California, lie the Channel Islands. In this ideal region for the yachtsmen, the fishermen and the hunter one comes to feel like a new Crusoe on his primitive isle. And in very truth Crusoe's semimythical story was enacted upon one of these same islands, though minus the man Friday and the happy ending.

The castaway in this case was a woman, a Danish emigrant, left ashore through some mischance by the crew of a vessel that had sought shelter behind San Nicholas during a storm in the early '60s. For over seventeen years the lone creature lived unsought and forgotten, though the time at length came when, on the days the mist-clearing north wind blew, she could climb to the island's highest point and view the ranchers' herds grazing upon the mainland.

And at last, when hope and reason had both long died, the poor, wild, gibbering creature was found in her wolf's burrow among the hills by the advance guard of the otter hunters' fraternity, who had long wondered at the mysterious footprints they marked upon the lonely sands.